

26STUD00941 26STUD00941

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Case Number: 26STUD00941 Hearing Date: September 10, 2026 Dept: 534

Background of 26STUD00941

On January 28, 2026, Pacific Loanworks filed this unlawful detainer action against Walter Berry and Marion Chatmon related to real property located at 4703 ½ Crenshaw (Back Entrance) Blvd., Los Angeles, California, 90043.

On July 8, 2026, the court granted a motion to substitute Plaintiffs Richard D. Allsup, Shelly Ann Allsup, Charles Lee Lanzrath, Brian D. McKay, and Robert Cooke for Pacific Loanworks.

Background of 26STCV19547

On June 22, 2026, Ashlei Antionette Chatmon-James and Marion L. Chatmon sued Pacific Loanworks, Inc., Total Lender Solutions, Inc., Michael W. Gross, Matthew W. Gross, Brian D. McKay, Richard D. Allsup, Shelly Ann Allsup, Charles Lee Lanzrath, and Robert Cooke asserting causes of action for: (1) wrongful foreclosure; (2) cancellation of instruments (Civ. Code § 3412); (3) declaratory relief (Code Civ. Proc. § 1060); (4) quiet title (Code Civ. Proc. § 760.020); (5) request for injunctive relief; and (6) violation of Business and Professions Code § 17200.

The complaint alleges real property located at 4703 Crenshaw Boulevard, Los Angeles, California 90043 was unlawfully sold at a foreclosure sale and seeks to quiet title in favor of Plaintiffs.

On July

24, 2026, Judge Tony L. Richardson issued an order summarily finding "26STCV19547 and 26STUD00941, are not related within the meaning of California Rules of Court, rule 3.300(a)."

On August

14, 2026, Marion Chatmon filed the instant motion seeking to relate 26STCV19547 and 26STUD00941.

Judicial

Notice

The

requests for judicial notice of the complaint in 26STCV19547 and the minute order declining to relate the cases are GRANTED. (Evid. Code § 452(d).) The requests are DENIED as to the other documents as immaterial.

Motion

to Relate Cases

Standard

Pursuant

to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), "[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases are all pending in the Central District or are pending in two or more different districts." The Court does not address the merits when ruling on a Notice of Related Case.

The

Court Relates the Cases at Issue

On

July 24, 2026, Judge Tony L. Richardson issued an order finding 26STCV19547 and 26STUD00941 were not related. The motion is therefore properly before this Court. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

Cases

are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).) Chatmon contends the cases are related based upon the first, second, and third grounds enumerated in Rule 3.300(a). The oppositions argue the cases should not be related.

The

cases do not involve the same parties.

(Cal. R. Ct., rule 3.300(a)(1).) The cases also are not based on the same or similar claims, (*ibid.*), and do not arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact. (Cal. R. Ct., rule 3.300(a)(2).) Unlawful detainer proceedings only concern straightforward issues regarding the right to possession of disputed premises and the award of damages for any unlawful detention; therefore, issues regarding the property's title cannot be adjudicated therein because unlawful detainer proceedings are designed to be summary proceedings. (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385.)

However,

the cases involve title to, and possession of, the same property, (Cal. R. Ct., rule 3.300(a)(3)), and will require a substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).) The property at issue in the unlawful detainer action is subject to competing quiet title claims in the civil case and the unlawful detainer defendant has challenged plaintiff's ownership. (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385 ("a successful claim of title . . . would defeat the [plaintiff's] right to possession.")) Additionally, the cases involve similar issues regarding the property's foreclosure. The Court finds the cases are related within the meaning of California Rules of Court, rule 3.300.

Where,

as here, "an unlawful detainer proceeding and an . . . action concerning title

to the property are simultaneously pending, the trial court in which the . . . action is pending may stay the unlawful detainer action until the issue of title is resolved in the unlimited action, or it may consolidate the actions."

(Ibid.) In the Superior Court of Los

Angeles County, a party cannot request consolidation unless the cases are pending in the same department, (SCLAC Local Rules, rule 3.3(g)(1), which is achieved via an order relating the cases. A single judicial officer should determine which of these remedies, if any, are appropriate under the circumstances and resolve all disputes between the parties related to the property. (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820 ("The notice allows the trial court to promote efficiency, to avoid duplicative effort, to combat judge-shopping, and to minimize the prospect of conflicting results.")).)

The

motion is GRANTED.

Conclusion

Defendant

Marion Chatmon's Motion Relating Cases is GRANTED.

The

Court relates 26STCV19547 and 26STUD00941 and orders 26STUD00941 reassigned to Department 415 of the Stanley Mosk Courthouse for all purposes.

All

hearings currently set in 26STUD00941 are hereby advanced and vacated.

Counsel

for Chatmon to give notice.